

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-31
NIELSEN & BAINBRIDGE, LLC

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

THIRD JOINT MOTION FOR LIMITED EXTENSION OF TIME

Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” or “OOCL” and, collectively with Complainant, the “Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion for Limited Extension of Time (“Motion”) and respectfully request a limited, eight-day extension of the August 6, 2026 deadline to complete depositions of fact witnesses, to August 14, 2026, for the sole and limited purpose of completing the depositions of two OOCL employees, Thomas Schmiemann and Sharon Wong, on August 11 and August 13, 2026, respectively, together with a corresponding eight-day extension of each of the remaining deadlines in the Presiding Officer’s June 1, 2026 Second Amended Scheduling Order. The Parties seek no change to the intervals between remaining deadlines, and the proposed schedule preserves each of the periods the Presiding Officer allotted for expert disclosures, expert depositions, and briefing.

I. The Current Schedule and the Status of Fact Depositions

On June 1, 2026, the Presiding Officer entered the Second Amended Scheduling Order, which set August 6, 2026 as the deadline for the Parties to complete depositions of fact witnesses and set the remaining deadlines for expert discovery, the close of discovery, and briefing.

The Parties have made substantial progress in completing fact depositions. To date, the Parties have taken and completed nine (9) fact witness depositions. Two additional depositions are scheduled and will be completed on or before August 6, 2026: the deposition of Billie Webb on August 4, 2026, and the corporate deposition of Complainant's designee, Bradley Scher, on August 5, 2026. Together with the depositions that are the subject of this Motion, the Parties will have completed thirteen (13) depositions in this proceeding.

Two depositions remain that cannot be completed by August 6, 2026. Complainant seeks to depose Thomas Schmiemann, OOCL (USA) Inc.'s Vice President of Sales, and Sharon Wong, Deputy Manager of Trans-Pacific Trade. Notwithstanding the Parties' diligent efforts to secure earlier dates, the earliest dates on which these witnesses and counsel are mutually available are August 11, 2026 for Mr. Schmiemann and August 13, 2026 for Ms. Wong. Both dates are now confirmed and scheduled.

The Parties note, for the Presiding Officer's awareness, that a medical issue affecting Ms. Webb could require her August 4, 2026 deposition to be rescheduled. Ms. Webb presently plans to appear, and the Parties expect her deposition to proceed as noticed on August 4, 2026. Should a short adjournment nonetheless become necessary, the extension required herein would permit her deposition to be completed on or before August 14, 2026, without the need for a successive motion.

II. Good Cause Exists for the Limited Extension Request

A. Legal Standard

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Section 502.102(a) further provides that a motion for enlargement of time should be received at least seven days before the scheduled filing date, but that a motion filed within that period "may be considered where reasonable grounds are found for the failure to meet this requirement." Reasonable grounds exist here. The Parties continued to work through the availability of Mr. Schmiemann, Ms. Wong, and counsel for the Parties in an effort to secure dates on or before August 6, 2026, and confirmed the August 11 and August 13, 2026 dates only upon exhausting that effort. The Parties have moved promptly thereafter, filing this Motion as soon as the need for the limited relief requested became apparent and well in advance of the depositions themselves.

B. The Parties Have Diligently Worked to Comply with the August 6, 2026 Deadline

The Parties have worked cooperatively and diligently throughout the deposition phase of this proceeding. The Parties exchanged witness lists and scheduled depositions on a rolling basis as witness availability permitted, resulting in the completion of nine fact depositions and the scheduling of two further depositions, including a corporate deposition, in advance of the current deadline. The Parties have also worked to limit the number of depositions and to narrow the issues requiring fact testimony, and have brought no deposition-related disputes before the Presiding Officer.

The need for this Motion arises not from any lack of diligence, but from the practical difficulty of coordinating the schedules of the remaining witnesses and counsel for the Parties within the compressed remaining period. Mr. Schmiemann and Ms. Wong are current OOCL

employees with ongoing business obligations, and their availability, together with the availability of counsel for both Parties, could not be secured on any date on or before August 6, 2026.

C. The Relief Requested Is Narrow, and the Corresponding Shift of the Remaining Deadlines Is Necessary to Preserve the Periods the Presiding Officer Allotted

The extension requested is limited in every respect. It is limited in time, seeking only eight additional days; limited in scope, applying solely to the depositions of Mr. Schmiemann and Ms. Wong, and, if a short adjournment becomes necessary, Ms. Webb; and limited in effect, shifting the remaining deadlines by the same eight days without altering the structure of the schedule or the intervals between milestones established by the Presiding Officer. The requested relief is tied to specific, already noticed depositions of identified witnesses, and the Parties do not anticipate seeking to reopen the fact deposition period for any other witnesses.

The Corresponding eight-day shift of the remaining deadlines is necessary because extending the deposition period alone would compress, rather than preserve, the time the Presiding Officer allotted for expert work. The Second Amended Scheduling Order afforded Complainant fourteen days between the close of fact depositions on August 6, 2026 and the disclosures of its initial expert report on August 20, 2026. If the deposition deadline alone were extended to August 14, 2026, that fourteen-day period would be cut to six days—and those six days would follow a period in which three additional depositions are taken. Within that window Complainant would be required to order and receive the transcripts of those depositions, review them, provide them to its experts, and prepare and serve its initial expert report.

The Parties do not anticipate seeking any further extension of the schedule and will continue to work cooperatively to complete the remaining depositions promptly and to resolve any discovery issues without the involvement of the Presiding Officer.

III. Conclusion

For the foregoing reasons, the Parties respectfully request that the Presiding Officer extend the August 6, 2026 deadline to complete depositions of fact witnesses to August 14, 2026, and correspondingly extend each of the remaining deadlines in the June 1, 2026 Second Amended Scheduling Order by eight days, as follows:

EVENT	PROPOSED DEADLINE
Complete depositions of fact witnesses	August 14, 2026
Last day to serve interrogatories, requests for admission, and RFPs	August 14, 2026
Disclosure of initial expert reports, if any	August 28, 2026
Disclosure of rebuttal expert reports, if any	September 11, 2026
Complete expert depositions	September 23, 2026
Close of Discovery	September 23, 2026
Complainant's initial brief, proposed findings of fact, and appendix	October 21, 2026
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	November 18, 2026
Complainant's reply and responses to proposed findings of fact	December 2, 2026

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion for Limited Extension of Time be granted.

Dated: August 3, 2026

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Respectfully submitted,

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